

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1755

By: Kerbs

AS INTRODUCED

An Act relating to agriculture; providing pesticide warning labels are sufficient under certain circumstances; providing circumstances when warning label is adequate; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-97 of Title 2, unless there is created a duplication in numbering, reads as follows:

Notwithstanding any provision to the contrary, for any pesticide registered with the United States Environmental Protection Agency under the Federal Insecticide, Fungicide, and Rodenticide Act, 7 U.S.C., Section 136 et seq., the label approved by the United States Environmental Protection Agency in registering the pesticide, or a label consistent with the most recent human health assessment performed under the Federal Insecticide, Fungicide, and Rodenticide Act, or a label consistent with the United States Environmental Protection Agency carcinogenicity classification for the pesticide under the Federal Insecticide, Fungicide, and Rodenticide Act, shall

1 be sufficient to satisfy any requirements for a warning regarding
2 health or safety under Oklahoma state law, including without
3 limitation, the duty to warn, or any other common law duty to warn
4 if:

5 1. Approved by the Environmental Protection Agency under the
6 Federal Insecticide, Fungicide, and Rodenticide Act and by the
7 Oklahoma Department of Agriculture, Food, and Forestry at the time
8 of sale;

9 2. Consistent with the most recent human health assessment
10 performed by Environmental Protection Agency under the Federal
11 Insecticide, Fungicide, and Rodenticide Act at the time of sale; or

12 3. Consistent with the Environmental Protection Agency
13 carcinogenicity classification for the pesticide under the Federal
14 Insecticide, Fungicide, and Rodenticide Act at the time of sale.

15 SECTION 2. This act shall become effective November 1, 2025.

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